

Brighton Corporation Act, 1960

8 & 9 ELIZ. 2 Ch. xxv

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CHAPTER xxv

An Act to confer further powers on the mayor aldermen and burgesses of the county borough of Brighton to make further provision with respect to the health local government improvement and finances of the borough and for other purposes. [29th July 1960.]

WHEREAS the borough of Brighton (hereinafter referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas it is expedient that further provision should be made with respect to the health local government improvement and finances of the borough and that the powers of the Corporation in relation thereto should be enlarged and extended as by this Act provided:

And whereas it is expedient that the other provisions of this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I
PRELIMINARY

1.—(1) This Act may be cited as the Brighton Corporation Act 1960.

Short and
collective
titles.

PART I
—cont.

(2) The existing enactments and this Act may be cited together as the Brighton Corporation Acts 1931 to 1960.

Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Streets and sanitation.

Part III.—Fire precautions.

Part IV.—Water.

Part V.—Superannuation.

Part VI.—Miscellaneous.

Part VII.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires and except as otherwise expressly provided—

“ the Act of 1933 ” means the Local Government Act 1933;

“ the Act of 1936 ” means the Public Health Act 1936;

“ the borough ” means the county borough of Brighton;

“ the commission ” means the British Transport Commission;

“ the Corporation ” means the mayor aldermen and burgesses of the borough;

“ the council ” means the council of the borough;

“ enactment ” includes an enactment in this Act or in any public general or local Act or any order byelaw scheme or regulation for the time being in force in the borough;

“ the existing enactments ” means the enactments specified in the Second Schedule to this Act;

“ financial year ” means a period of twelve months ending on the thirty-first day of March;

“ hackney carriage ” has the meaning given to that expression by section 38 of the Town Police Clauses Act 1847 but does not include a public service vehicle or a trolley vehicle;

“ magistrates’ court ” has the meaning given to that expression by subsection (1) of section 124 of the Magistrates’ Courts Act 1952;

“ public service vehicle ” has the meaning given to that expression by section 39 of the Road Traffic Act 1956;

“ telegraphic line ” has the meaning given to that expression by the Telegraph Act 1878;

“ the town clerk ” means the town clerk of the borough;

“ trolley vehicle ” has the meaning given to that expression by section 54 of the Road Traffic Act 1956.

PART I
—cont.

(3) References in this Act to any other enactment shall unless the context otherwise requires be construed as a reference to that enactment as amended by any other enactment including this Act.

PART II

STREETS AND SANITATION

4.—(1) If a person erects or permits to be erected over a footway in the borough being a highway an awning which— Awnings over footways.

(a) projects over any part of the footway which is less than one foot six inches from the carriageway; or

(b) obscures a traffic sign from the view of persons driving or riding vehicles on the carriageway;

he shall be liable to a fine not exceeding forty shillings.

An awning that can be folded up or rolled up without being dismantled shall be treated for the purposes of this subsection as being in its extended position.

(2) If an awning over such a footway is prejudicial to the safety or convenience of the public the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to prevent such prejudice to safety or convenience.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under subsection (2) of this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) In this section the expression “ awning ” includes a blind shade or other covering.

5.—(1) No person shall cause or permit any vehicle other than a hackney carriage to wait on any stand for hackney carriages fixed by byelaws made by the Corporation under the provisions of section 68 of the Town Police Clauses Act 1847 or by regulations made by the Corporation under section 421 (Power to make regulations for certain purposes) of the Brighton Corporation Act 1931. Prohibition of other vehicles on hackney-carriage stands.

(2) If any person contravenes the provisions of this section he shall be liable in case of a first conviction to a fine not exceeding five pounds and in the case of a second or subsequent conviction to a fine not exceeding ten pounds.

PART II
—cont.Illumination of
street names.

6.—(1) Subject to the provisions of this section the Corporation may illuminate any inscription which has been set up of the name of any street in the borough:

Provided that the Corporation shall not continue any illumination under this section which in the opinion of the commission hinders or is likely to hinder the interpretation of any railway signal or is likely to render more hazardous the use of any railway.

(2) The Corporation may for the purposes of this section affix lamps brackets pipes electric lines or other apparatus (hereafter in this section referred to as “attachments”) to a building with the consent of the owner of the building:

Provided that where in the opinion of the Corporation any consent required under this subsection is unreasonably withheld they may apply to a magistrates’ court which may either allow the affixing of the attachments subject to such conditions (if any) as the magistrates’ court thinks fit or disallow the affixing of the attachments.

(3) Any electrical apparatus provided in pursuance of the powers of this section shall be so constructed maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Power to
cleanse or
repair drains
etc.

7. The Corporation may on the application in writing of the owner or occupier of any premises in the borough undertake the cleansing or repair of any drains water-closets sinks or gullies in or connected with the premises and may recover from the applicant such reasonable charge if any for so doing as they think fit.

PART III

FIRE PRECAUTIONS

Further pro-
vision as to
means of
escape from
fire.

8. Section 60 (Means of escape from fire in the case of certain high buildings) of the Act of 1936 shall have effect in its application to the Corporation and the borough as if the following paragraph were substituted for paragraph (a) of subsection (4) thereof—

“(a) is occupied in or used as flats or tenement dwellings; or”.

PART IV

WATER

Water rates.

9.—(1) For the purposes of section 46 of the Third Schedule to the Water Act 1945 as incorporated with the existing enactments—

(a) the prescribed rate poundages shall be those prescribed in subsection (1) of section 44 (Rates for domestic supply) of the Brighton Corporation Act 1931; and

(b) the prescribed proportion of the net annual value of rate poundage on any premises for the purposes of paragraph (b) of subsection (1) of the said section 46 shall be sixty-six and two-thirds per centum.

(2) Subsection (5) of section 26 (Amendment of certain sections of Act of 1931 relating to water) of the Brighton Corporation Act 1948 is hereby repealed.

10.—(1) The rates and charges or any of them which the Corporation are authorised to make for a supply of water may if the Corporation and any local authority so agree be collected and recovered by the local authority and accordingly references to the undertakers in section 38 of the Water Act 1945 and Part XII of the Third Schedule to that Act as applied to the water undertaking for the time being of the Corporation by section 24 (The Third Schedule incorporated with Part III of Act of 1931) of the Brighton Corporation Act 1948 shall unless the context otherwise requires be construed in a case where the local authority has agreed for the time being to collect and recover water rates and charges as aforesaid as references to that local authority.

Agreements as to collection of water rates and charges.

(2) (a) Any such water rates or charges may be collected and recovered by the local authority in its own name together with the general rate and the same books and forms of demand note and receipt may be used for the general rate and the water rates and charges.

(b) Notwithstanding the provisions of any other enactment any such water rates or charges recoverable by the local authority in a magistrates' court may (without prejudice to any other right or remedy of the local authority) be recovered in the same manner and subject to the same provisions in respect of their recovery as the general rate.

(3) The Corporation may pay or allow to any local authority who for the time being collect and recover water rates and charges under this section such sum as may be agreed between the Corporation and that local authority as payment for the cost of collection thereof.

PART V

SUPERANNUATION

11.—(1) In its application to the Corporation subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if for the obligation to invest as mentioned in that subsection moneys forming part of but not for the time being required to meet payments out of the superannuation fund

Investment of superannuation fund.

PART V
—cont.

maintained by the Corporation under that Act there were substituted an obligation to invest such moneys as follows (namely):—

- (a) in or upon any investments authorised by section 1 of the Trustee Act 1925 but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks funds or securities of any dominion commonwealth union dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part of any such dominion commonwealth union dependency or colony; or
- (c) in or upon any of the stocks bonds mortgages or securities of any municipality or county or district council or local or public authority or board in the United Kingdom or in any such dominion commonwealth union dependency colony province or state as aforesaid authorised under any public general or local Act of the United Kingdom Parliament or of the legislature concerned to issue the same; or
- (d) in or upon any stocks shares bonds mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom Government or by the government of any such dominion commonwealth union dependency colony province or state as aforesaid; or
- (e) in or upon the bonds debentures debenture stock mortgages obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company incorporated under any public general or local Act of the United Kingdom Parliament or by royal charter being stock or shares which are at the time of making the investment quoted on the London Stock Exchange; or
- (f) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof has at the time of making the investment at least sixty years to run; or
- (g) upon the security of freehold property freehold ground rents land charges or rentcharges by way of first mortgage up to the limit of two-thirds of the value thereof;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

PART V
—cont.

Provided that the investment of such moneys as aforesaid in any investment of the nature specified in paragraph (e) of this subsection shall be subject to the following qualifications:—

- (i) no investment shall be made in any company which has not paid a dividend of at least five per centum on the ordinary stock or shares of the company for each of the four years immediately preceding the date of investment or (if the company has been incorporated or has been trading for less than four years before the date of investment) unless—

(A) the company has paid such dividend for each of the years since incorporation or commencement of trading as the case may be; or

(B) in the case of a company which has not been incorporated or trading for at least one year before the date of investment but which has been formed by the amalgamation of other companies each of such other companies has paid a dividend of at least five per centum on its ordinary stock or shares for each of the four years immediately preceding the date of the amalgamation;

- (ii) no investment shall be made at any time when the value of all the investments made under the said paragraph (e) which form part of the superannuation fund equals or exceeds one-half of the total value of the assets of that fund;
- (iii) no investment shall be made in securities transferable by delivery.

(2) For the purposes of subsection (1) of this section the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

PART VI MISCELLANEOUS

12.—(1) As from the appointed day no person shall commence to erect in the borough a stand capable of affording seating or standing accommodation for twenty or more persons at any one time unless he has given notice to the Corporation of his intention to do so accompanied by a plan and section of the stand and such further particulars as the Corporation may reasonably require and the Corporation have approved the erection of the stand under this section.

Safety of
stands.

PART VI
—cont.

(2) Within five weeks from the receipt of such a notice from any person the Corporation may give him notice that they approve the erection of the stand but only subject to—

- (a) such modifications of the plan section and particulars submitted to them; and
- (b) compliance with such requirements as to maintenance and otherwise;

as may be specified in the notice being modifications and requirements which appear to the Corporation to be necessary for securing the stability of the stand and protection against fire and generally for securing the safety of persons to be accommodated thereon.

(3) If a notice given under subsection (1) of this section states the period for which it is proposed that the stand will remain erected the Corporation shall have regard to that statement in considering what modifications and requirements are to be specified in a notice under subsection (2) of this section but may by the last-mentioned notice require that the stand shall be pulled down and removed within such time from the expiration of that period as may be specified in the notice or such further time as the Corporation may allow.

(4) The Corporation may at any time within the said five weeks give notice that they approve the erection of the stand in accordance with the plan section and particulars submitted to them and if within the said five weeks the Corporation have not given notice under subsection (2) of this section they shall be deemed for the purposes of this section to have so approved the erection of the stand.

(5) Any person aggrieved by a requirement or other decision of the Corporation under this section may appeal to a magistrates' court.

(6) If any person—

- (a) commences to erect in contravention of subsection (1) of this section a stand capable of affording seating or standing accommodation for twenty or more persons at any one time; or
- (b) erects such a stand otherwise than in accordance with a plan a section and particulars submitted to the Corporation under the said subsection (1) or if notice has been given of any modifications under subsection (2) of this section otherwise than in accordance with the said plan section and particulars as modified by the notice; or
- (c) being the owner or occupier of such a stand erected otherwise than as aforesaid allows twenty or more persons to be on the stand at any one time; or

(d) being the owner or occupier of such a stand fails to comply with any requirement imposed by a notice under subsection (2) or subsection (3) of this section;

he shall be liable to a fine not exceeding fifty pounds and in the case of any such failure to a daily fine not exceeding forty shillings:

Provided that nothing in this subsection shall apply to a stand the erection whereof was commenced before the appointed day.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(8) The provisions of this section shall not apply to a stand erected—

(a) by the South Eastern Gas Board on operational land of the board within the meaning of section 119 of the Town and Country Planning Act 1947 for use by members officers and servants of the board and their contractors agents or workmen; or

(b) by the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

(9) In this section the expression “stand” includes a structure but does not include a building or extension of a building to which building byelaws are applicable.

(10) (a) For the purposes of this section the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(b) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(i) of the passing of such resolution and of the date fixed thereby; and

(ii) of the general effect of this section;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(c) Either—

(i) a copy of any such newspaper containing any such notice; or

(ii) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

PART VI

—cont.

Disposal of lost
and
uncollected
property.

13.—(1) In this section—

the expression “lost property” means any property coming into the custody of the Corporation after being left in any premises occupied by the Corporation (other than premises used for the purposes of or in connection with the road transport undertaking for the time being of the Corporation) to which the public have access; and

the expression “uncollected property” means any property deposited in any cloakroom or parcels store provided by the Corporation for the use of the public in which there is exhibited a notice stating the effect of subsections (2) and (3) of this section.

(2) Where any lost property or uncollected property is contained in a package bag or other receptacle the Corporation may cause such receptacle to be opened and the contents examined if they deem it necessary to do so for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(3) Unless a claimant proves to the reasonable satisfaction of the Corporation within three months of its coming into the custody of the Corporation that any lost property or uncollected property belongs to him such lost property or uncollected property shall at the expiration of that period vest in the Corporation.

(4) Where any lost property becomes vested in the Corporation in pursuance of this section the Corporation may if they think fit deliver to the person whether an employee of the Corporation or not who placed the lost property in the custody of the Corporation the whole or any part of such property or of the estimated value thereof in cash.

(5) This section shall have effect subject to any express terms upon which any uncollected property is placed in the custody of the Corporation.

(6) Section 119 (Property found in cars &c.) of the Brighton Corporation Act 1931 is hereby repealed.

Illuminations.

14.—(1) The Corporation may in on or over—

(a) any streets in the borough; or

(b) any structures gardens parks and places in the borough belonging to the Corporation; or

(c) (with the consent of the owner or occupier) any other land or premises in the borough;

provide or arrange on such terms and conditions as they may think fit for the provision of illuminations and may for such purposes provide fit up maintain and operate all such brackets lamps fittings equipment apparatus and appurtenances and do

all such things as may be necessary or requisite in connection therewith:

PART VI
—cont.

Provided that the Corporation shall not continue any illumination under this section which in the opinion of the commission hinders or is likely to hinder the interpretation of any railway signal or is likely to render more hazardous the use of any railway.

(2) The provisions of section 37 (Attachment of brackets &c. to buildings and bridges for street lighting purposes) of the Brighton Corporation Act 1948 shall extend and apply to such brackets lamps fittings equipment apparatus and appurtenances as may be required for the purposes of this section as if they had been mentioned in that section.

(3) Any illuminations and any brackets lamps fittings equipment apparatus or appurtenances provided fitted up maintained or operated under this section shall be so provided fitted up maintained and operated as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(4) Nothing in this section shall affect the application of regulations made under section 31 of the Town and Country Planning Act 1947 relating to advertisements.

15. The Corporation may enter any vehicles belonging to them in carnival processions in the borough and elsewhere and for that purpose may decorate any such vehicle or cause the same to be decorated:

Corporation
vehicles in
processions.

Provided that the sums to be expended by the Corporation in any one financial year in exercise of the powers of this section shall not in total exceed one hundred pounds.

16. Section 266 (Committee may make rates to defray expenses) of the Brighton Corporation Act 1931 shall have effect in relation to the Hanover Crescent Enclosure and the committee of that enclosure as if for the words "one shilling in the pound" in subsection (1) thereof there were substituted the words "two shillings in the pound".

As to
Hanover
Crescent
Enclosure.

17. The Corporation may enter into and carry into effect agreements or arrangements for the production to their order of any picture or sculpture or other work of art and for the purchase thereof.

Acquisition of
works of art
produced to
order.

18.—(1) The Corporation may sell lend exchange or give or otherwise dispose of any specimen work of art or book vested in them which in the opinion of the Corporation is not required for exhibition or use in any museum art gallery library or other building of the Corporation.

Disposal of
unsuitable
specimens and
works of art.

(2) The Corporation may make arrangements by way of sale loan exchange or gift with any person being the owner of any museum art gallery or library for the transfer to that person of any

PART VI
—cont.

specimen work of art or book vested in the Corporation which in the opinion of the Corporation is more suitable for exhibition or use in the museum art gallery or library of that person than in a museum art gallery library or other building of the Corporation.

(3) Where any object has become vested in the Corporation by virtue of a gift or bequest—

- (a) the Corporation shall if reasonably practicable consult with the donor or with the personal representatives or trustees of the donor before exercising the powers of this section; and
- (b) the powers conferred by this section shall not during a period of thirty-five years commencing on the date on which it became vested be exercisable as respects that object in any manner inconsistent with any condition attached to the gift or bequest.

(4) Any moneys received by the Corporation in the exercise of the powers of this section shall be applied by them in the purchase of specimens works of art or books.

Further powers
as to
libraries.

19.—(1) The powers of the Corporation in relation to any library provided by them shall include—

- (a) the power to provide and lend or permit the use of any article;
- (b) the power to require the payment of such reasonable sum as the Corporation may prescribe as a deposit prior to the lending of any article not being a book;
- (c) the power to charge such reasonable sum as the Corporation may prescribe for the reservation of any article;
- (d) the power to prescribe a period not being less than seven days within which any article borrowed from the library must be returned thereto;
- (e) the power to recover from any person who fails to return to the library within the prescribed period any article so borrowed such reasonable sum as the Corporation may prescribe in respect of any period in which he so fails to return that article together with any expenses incurred by the Corporation in sending to him notices in respect of the article;
- (f) the power to prohibit any such person from borrowing any other article from any library provided by the Corporation until he has paid any sum due to the Corporation under paragraph (e) of this subsection;

- (g) the power to prescribe different periods and charges for the purposes of this section in relation to different articles or kinds of articles:

Provided that the sum prescribed by the Corporation for the purposes of—

- (i) paragraph (b) shall not exceed forty shillings;
- (ii) paragraph (e) shall not exceed sixpence for each week or portion of a week or in the case of an article other than a book sixpence for each day;

or such greater sum as may be approved from time to time by the Minister of Education.

(2) In this section the expression “article” includes a book gramophone record tape-recording picture film film strip lantern slide map plan print engraving or photograph.

20.—(1) In this section—

Social
rehabilitation.

“special family” means any family residing in the borough which or any member of which requires special treatment to fit them or him to be useful members of the community;

“special home visitors” means persons specially skilled by experience or training in the subject of social rehabilitation;

“voluntary” means not carried on for profit and not provided by a local or public authority.

(2) For the purpose of rehabilitating a special family the Corporation may—

(a) either within or without the borough provide equip staff and maintain training centres for the accommodation and training of special families or any member of a special family;

(b) employ special home visitors to give advice or training to special families in their homes;

(c) supply to any special family such furniture fittings and other articles as the Corporation may think fit and for that purpose buy furniture fittings and other articles.

(3) Instead of themselves providing training centres and employing special home visitors for the purposes of subsection (2) of this section the Corporation may make arrangements with any voluntary organisation for the provision by that organisation of training centres or for the employment by them of special home visitors as aforesaid.

(4) The Corporation may recover from any person to whom any furniture fittings or other articles have been supplied under paragraph (c) of subsection (2) of this section such charges (if any) as having regard to the cost of the furniture fittings or other articles the Corporation may determine.

PART VI
—cont.

(5) The provisions of section 58 (Acquisition of land) of the National Health Service Act 1946 relating to the acquisition of land by agreement shall extend and apply for the purposes of paragraph (a) of subsection (2) of this section as if those purposes were one of the purposes of the said Act of 1946.

Welfare of
aged and
handicapped
persons.

21.—(1) The Corporation may make arrangements for—

- (a) providing aged persons and persons to whom section 29 (Welfare arrangements for blind deaf dumb and crippled persons etc.) of the National Assistance Act 1948 applies with meals and for providing aged persons with other domiciliary services in their own homes;
- (b) providing aged persons with recreational facilities in their own homes or elsewhere.

(2) The Corporation may recover from persons availing themselves of any service provided under this section such charges (if any) as having regard to the cost of the service the Corporation may determine whether generally or in the circumstances of any particular case.

(3) The arrangements made by the Corporation pursuant to subsection (1) of this section may include arrangements with any voluntary organisation for the provision by that organisation of meals domiciliary services or recreational facilities.

(4) This section shall apply to such aged persons and such persons to whom the said section 29 applies as are resident in the borough.

False
statements to
obtain
benefits.

22.—(1) Any person who for the purpose of obtaining for himself or for any other person any of the benefits or advantages hereinafter mentioned—

- (a) knowingly makes to the Corporation or to any of their employees a false statement or false representation relating to his or that other person's need for the benefit or advantage or ability to pay a rent or to make any other payment; or
- (b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or to any of their employees any document or information relating to the matters aforesaid which he knows to be false in a material particular;

shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

(2) The benefits or advantages hereinbefore referred to are—

- (a) the occupation of any house belonging to the Corporation;

(b) a rebate of the rent of any such house;

(c) a reduction in the amount of any payment due to the Corporation by virtue of the following enactments or of regulations made thereunder or the remission of any such payment:—

(i) the Children and Young Persons Act 1933;

(ii) the Education Acts 1944 to 1959;

(iii) the Children Act 1948; or

(d) any award grant contribution or payment made by the Corporation under the Education Acts 1944 to 1959 or under or by virtue of any regulations made under those Acts.

(3) If any person is convicted of an offence under this section the court may—

(a) terminate the tenancy of any house of which occupation has been obtained and order possession thereof to be given to the Corporation;

(b) order the person convicted to pay to the Corporation the amount of the rebate or reduction obtained by him;

(c) order the person convicted to make such payments as the court may think just to the Corporation in respect of—

(i) the reduction in the amount of any payment referred to in paragraph (c) of subsection (2) of this section or the remission thereof; or

(ii) any award grant contribution or payment referred to in paragraph (d) of the said subsection.

(4) For the purposes of this section the expression “house” includes any part of a house which is occupied or intended to be occupied as a separate dwelling.

23. Notwithstanding anything in paragraph 3 of Part V of the Third Schedule to the Act of 1933 or in any other enactment or rule of law to the contrary the minutes of the proceedings of meetings of the council or of any committee thereof may be recorded on loose leaves consecutively numbered the minutes of the proceedings of any meeting being signed and each leaf comprising those minutes being initialled at the same or next ensuing meeting of the council or committee (as the case may be) by the person presiding thereat and any minutes purporting to be so signed shall be received in evidence without further proof and for the purposes of sub-paragraph (2) of the said paragraph shall be deemed to have been made and signed in accordance with sub-paragraph (1) thereof.

As to minutes
of council
meetings etc.

PART VII

GENERAL

Restriction on
right to
prosecute.

24. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act (except under section 5 (Prohibition of other vehicles on hackney-carriage stands) hereof) by any person other than a party aggrieved or the Corporation.

Appeals.

25.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution no proceedings shall be taken in respect of any failure to execute the work or take the action.

Protection of
members and
officers of
Corporation
from personal
liability.

26. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act.

Application of
general
provisions of
Act of 1936.

27.—(1) The sections of the Act of 1936 mentioned in Part I of the First Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to section 12 (Safety of stands) of this Act.

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to Part II (Streets and sanitation) of this Act.

Costs of Act.

28. The costs charges and expenses of and incidental to preparing applying for and obtaining this Act as taxed by the taxing officer of one of the Houses of Parliament shall be paid by the Corporation out of the general rate fund.

SCHEDULES

FIRST SCHEDULE

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
277	Power of councils to require information as to ownership of premises.
283	Notices to be in writing; forms of notices &c.
286	Proof of resolutions &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
299	Inclusion of several sums in one complaint.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO SECTION 12 (SAFETY OF STANDS) OF THIS ACT

Section	Marginal note
287	Power to enter premises.
297	Continuing offences and penalties.

PART III

SECTION APPLIED TO PART II (STREETS AND SANITATION) OF THIS ACT.

Section	Marginal note
293	Recovery of expenses &c.

SECOND SCHEDULE

EXISTING ENACTMENTS RELATING TO THE CORPORATION

Brighton Corporation Act 1931.
 Brighton Corporation Act 1936.
 Brighton (Moveable Dwellings and Camping Grounds) Order 1938.
 Brighton Corporation (Transport) Act 1938.
 Brighton (Food) Order 1941.
 Brighton Corporation (Trolley Vehicles) Order 1947.
 Brighton Corporation Act 1931, Modification Order 1947.
 Brighton Corporation Water Order 1948.
 Brighton Corporation Act 1948.

2ND SCH.
—cont.

Brighton, Newhaven and Seaford Water Order 1949.
Brighton Extension Act 1951.
Brighton Corporation Trolley Vehicles (Increase of Charges) Order 1951.
Brighton Corporation (Trolley Vehicles) Order 1952.
Brighton Corporation Act 1954.
Brighton Corporation Water Order 1954
Seashore Byelaws (Brighton) Order 1955.
Brighton Corporation Water Order 1957.
Brighton Corporation (Pyecombe) Water Order 1958.
Brighton Corporation Water (Newmarket) Order 1958.
Brighton (Lewes) Water Order 1958.
Brighton Corporation (Water Charges) Order 1959.

Table of Statutes referred to in this Act

Short title	Session and chapter
Town Police Clauses Act 1847	10 & 11 Vict. c. 89.
Public Health Act 1875	38 & 39 Vict. c. 55.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Trustee Act 1925	15 Geo. 5. c. 19.
Brighton Corporation Act 1931	21 & 22 Geo. 5. c. cix.
Children and Young Persons Act 1933	23 Geo. 5. c. 12.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 51.
Brighton Corporation Act 1936	26 Geo. 5. & 1 Edw. 8. c. lxxvii.
Local Government Superannuation Act 1937	1 Edw. 8. & 1 Geo. 6. c. 68.
Brighton Corporation (Transport) Act 1938	1 & 2 Geo. 6. c. lxxxix.
Water Act 1945	8 & 9 Geo. 6. c. 42.
National Health Service Act 1946	9 & 10 Geo. 6. c. 81.
Town and Country Planning Act 1947	10 & 11 Geo. 6. c. 51.
National Assistance Act 1948	11 & 12 Geo. 6. c. 29.
Brighton Corporation Act 1948	11 & 12 Geo. 6. c. xxxviii.
Children Act 1948	11 & 12 Geo. 6. c. 43.
Brighton Extension Act 1951	14 & 15 Geo. 6. c. xxix.
Magistrates' Courts Act 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Brighton Corporation Act 1954	2 & 3 Eliz. 2. c. llii.
Road Traffic Act 1956	4 & 5 Eliz. 2. c. 67.

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